

Smt Shreeshyla vs Sri Mahadevaiah on 9 March, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No.2347 of 2013

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 9TH DAY OF MARCH, 2023

PRESENT

THE HON'BLE MR. JUSTICE ALOK ARADHE

AND

THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL

MISCELLANEOUS FIRST APPEAL NO.2347 OF 2013 (FC)

BETWEEN:

1. SMT. SHREESHYLA

Digitally
signed by
RUPA V
Location:
High Court of
Karnataka

W/O MAHADEVAIAH
AGED ABOUT 38 YEARS
R/A NO.83, 2ND CROSS
JYOTHINAGAR, NAGARABHAVI
BANGALORE-560072.

...APPELLANT

(BY SRI. MANJUNATH K.V. ADV.,)

AND:

1. SRI. MAHADEVAIAH
DEAD BY LR's.

1(a) DEEPAK .M
S/O LATE MAHADEVAIAH P
AGED ABOUT 29 YEARS.

1(b) DIVYA .M
D/O LATE MAHADEVAIAH P
AGED ABOUT 25 YEARS.

BOTH ARE R/AT. NO.83
2ND CROSS, JYOTHINAGAR
NAGARABHAVI, BANGALORE-560072.

...RESPONDENTS

(BY SRI. HEMANTH S, ADV., FOR
SRI. LOKESH D.K. ADV., FOR PROPOSED LR'S OF
R1(a & b) ON IA 1/22 AND IA 3/22
SRI. H. MOHAN KUMAR, ADV., FOR RESPONDENT
ON IA 1/21)

THIS MFA IS FILED U/S 19(1) OF HINDU MARRIAGE ACT,
AGAINST THE JUDGMENT AND DECREE DATED:19.1.2013
PASSED IN M.C NO.2340/2008 ON THE FILE OF II ADDITIONAL
PRINCIPAL JUDGE, FAMILY COURT, BANGALORE, ALLOWING
THE PETITION FILED U/SEC 13(1)(i)(ia)& (ib) OF THE HINDU
MARRIAGE ACT.

THIS APPEAL COMING ON FOR FINAL HEARING, THIS
DAY ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal under Section 28(1) of the Hindu Marriage Act, 1955 has been filed against the judgment and decree dated 19.01.2013 passed by the family Court by which the petition filed by the deceased- husband, namely, late Sri.Mahadevaiah, seeking dissolution of marriage on the ground of cruelty has been allowed.

2. The facts giving rise to fling of this appeal briefly stated are that the parties got married on 08.05.1988. Admittedly from the wedlock two children i.e., son and daughter were born. The children born from the wedlock have attained majority and are admittedly, 30 years and 25 years respectively. They have been arrayed as respondent No.1(a) and (b) in this appeal.

3. On 28.08.2007, respondent filed a petition under Section 13 of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the ground of cruelty. It was inter alia pleaded that appellant had quarrelsome nature and used to abuse and scold the husband. It was further pleaded that at the insistence of the appellant, the deceased-respondent No.1 (hereinafter referred to as 'husband' for short) shifted to a rented house. However, the husband learnt that the wife developed an extra marital relationship with respondent No.2, who used to visit the matrimonial house very often in the absence of the husband. It was averred that on 29.01.2007, when the husband returned from his work, he found the appellant in the company of respondent No.2. When the husband questioned the conduct of the appellant and respondent No.2, the respondent No.2 assaulted the husband, due to which he sustained severe injuries. Despite intervention of the elders and relations, appellant continued her relationship with respondent No.2.

4. It was also pleaded that on 13.11.2007, the appellant and respondent No.2 locked the husband in a room with an intention to kill him and had lodged a false complaint before the State Women's Commission against the husband wherein he was summoned. Accordingly, it was pleaded that the appellant has treated the husband with cruelty. The appellant therefore sought dissolution of marriage on the ground of cruelty.

5. The appellant filed statement of objections, in which the factum of marriage as well as the birth of children have been admitted. However, all other averments made in the petition were denied. It was averred that the husband did not arrange for the residence of the appellant and the appellant was aged about 15 years at the time of marriage. It was also pleaded that the appellant has discharged her duties as dutiful wife and it was denied that she had any extra marital relationship with respondent No.2.

6. In order to prove the case, the husband examined himself as PW-1 and exhibited 11 documents, namely, Exs.P-1 to P-11. The appellant examined herself as RW-1. The Family Court vide judgment dated 19.01.2013 inter alia held that the ground of desertion as well as cruelty is made out. Accordingly, the decree for dissolution of marriage was granted.

7. Learned counsel for the appellant submitted that the family Court ought to have appreciated that the ground pleaded by the appellant with regard to cruelty was not made out and the family Court has failed to appreciate the evidence on record on its correct perspective which has resulted in erroneous findings.

8. Learned counsel for respondent No.1(a) and 1(b) has pointed out that the husband has expired during the pendency of the appeal. It is further submitted that respondent No.1(a) and 1(b) supported the appellant.

9. We have considered the submissions made on both sides and have perused the record. In Dr.N.G.DASTANE VS. S.DASTANE, the Supreme Court while dealing with cruelty as a ground for divorce has held that in a case for divorce on the ground of cruelty, the conduct charged as cruelty is to be of such a character so as to cause in the mind of the petitioner a reasonable apprehension that it will be harmful or injurious for the petitioner to live with the respondent. It was further held that it was not necessary that cruelty must be of such nature as to cause danger to life, limb or health or as to give rise to a reasonable apprehension of such a danger of harm or injury to health or reputation or the like would be an important consideration in determining whether the conduct of the respondent amounts to cruelty or not. It was also held that the question of cruelty as ground for divorce has to be determined on the basis of facts and circumstances of each case.

10. It is well settled in law that in a petition seeking decree of divorce on the ground of cruelty, special instances of cruelty have to be pleaded. (See: NEELAM KUMAR VS. DAYA RANI). It is equally well settled legal proposition that if a testimony of witness is not challenged in the cross examination, the same is taken to be admitted. [See: MUDDASANI VENKATA NARSAIAH (D) THROUGH LRS. VS. MUDDASANI SAROJANA', (2016) 12 SCC 288]

11. In the backdrop of aforesaid well settled legal principles, we may advert to the facts of the case in hand. The husband who was examined as PW1 has stated that in his evidence that appellant used to insult him in front of his friends and relatives, which amounts to mental cruelty. The statement of the husband that he was insulted in public has remained unchallenged. The husband in para 8 of his examination in chief has stated that the appellant has developed extra marital relationship with respondent No.2 and respondent No.2 used to visit the matrimonial home very often during the

absence of the husband and the children. It has further been stated in para 8 of the examination in chief that on 29.01.2007, when the husband returned home he found the appellant and respondent No.2 inside the house and on query being raised, appellant and respondent No.2 assaulted him and inflicted injuries on the husband. Thereupon the husband filed a police complaint Ex.P3. The aforesaid statement has also not been challenged in the cross examination.

12. Thus, insulting the husband in public and the presence of respondent No.2 in the matrimonial home with the appellant in the absence of the husband and on query being raised, the husband being assaulted by the appellant and respondent No.2 which leads to filing of a police complaint Ex.P3 clearly amounts to inflicting mental cruelty on the husband. Therefore, the family court on the basis of meticulous appreciation of evidence on record, has granted the decree of divorce on the ground of cruelty.

13. However, from the perusal of averments made in the petition, the ground pertaining to dissolution of marriage on the ground of desertion has not been pleaded. The date on which the husband was compelled to leave the matrimonial home has not been disclosed and the petition does not contain an averment that

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appellant has deserted the husband for a continuous period of 2 years. In the absence of any specific pleading with regard to essential ingredients of desertion, the family court was not justified in granting a decree of divorce on this ground.

14. For the aforementioned reasons, the impugned judgment and decree passed by the family court in M.C.No.2340/2008 insofar as it grants decree of dissolution of marriage on the ground of desertion is set aside. However, the same is affirmed insofar as it pertains to grant of decree on the ground of cruelty.

In the result, the appeal is partly allowed.

Sd/-

JUDGE Sd/-

JUDGE MDS/SS